

BEFORE THE BOARD OF BEHAVIORAL SCIENCE
OF THE STATE OF IOWA

IN THE MATTER OF:	)	CASE NUMBER: 10-003
	)	
CARLA HUGHES,	)	
	)	SETTLEMENT AGREEMENT
	)	AND FINAL ORDER
RESPONDENT.	)	

COME NOW the Iowa Board of Behavioral Science ("Board") and Carla Hughes ("Respondent"), and pursuant to Iowa Code sections 17A.10 and 272C.3(4), enter into the following Settlement Agreement and Final Order of the contested case currently on file against the Respondent:

1. Respondent is licensed to practice as a mental health counselor in the state of Iowa. Respondent was issued license number 001084 on April 4, 2008.
2. The Board filed a Notice of Hearing and Statement of Charges against the Respondent on August 9, 2012. A contested case hearing in this matter is scheduled for February 7, 2013.
3. Respondent's current address on file with the Board is 1512 Cottonwood Lane NE, Cedar Rapids, Iowa 52402.
4. The Board has jurisdiction over the parties and the subject matter.
5. Execution of this Settlement Agreement and Final Order constitutes the resolution of this contested case. Respondent has a right to a hearing on the charges, but waives her right to hearing and all attendant rights, including the right to appeal, by freely and voluntarily agreeing to this Settlement Agreement and Final Order. Once entered, this Order shall have the force and effect of a disciplinary order entered

following a contested case hearing.

6. Respondent is freely and voluntarily entering into this Settlement Agreement and Final Order, and she agrees that the State's counsel may present this agreement to the Board and may have ex parte communication with the Board while presenting it.

7. This agreement is subject to approval of the Board. If the Board approves this agreement, it becomes the final disposition of this matter. If the Board fails to approve this agreement, it shall be of no force or effect to either party. If this agreement is not approved, settlement discussions and related materials shall not be admissible as evidence in this or any subsequent matters.

8. If approved, this agreement shall be part of the permanent record of Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

9. If approved, this Settlement Agreement and Final Order is a public record available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C. The Notice of Hearing and Statement of Charges is also a public record available for inspection and copying in accordance with the requirements of Iowa Code chapters 17A, 22 and 272C.

10. The Board's approval of this Settlement Agreement and Final Order shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:

11. Respondent is hereby CITED for her improper diagnostic assessment of a non-client. Respondent is hereby WARNED that engaging in such conduct in the future

may result in future disciplinary action, including suspension or revocation of her license to practice mental health counseling in the state of Iowa.

12. Respondent's license shall be placed on PROBATION for a period of one (1) year from the date this agreement is executed, subject to the following terms and conditions:

a. Respondent shall attend ten (10) hours of continuing education in the area of ethics and ten (10) hours of continuing education in the area of assessment and diagnosis within one year from the date this agreement is executed. Such hours shall be in addition to the standard continuing education renewal requirements. Prior to attending the continuing education, Respondent shall submit the name of the course(s), the course instructors, and the course content to the Board for its approval.

b. Respondent shall, within thirty (30) days of the date of this agreement, submit the name and curriculum vitae of a proposed practice monitor to the Board for its approval. The proposed practice monitor shall be a licensed mental health counselor. The approved practice monitor will be provided a copy of the Notice of Hearing and Statement of Charges and this agreement. Respondent shall sign releases to allow for the free flow of information between the Board and Respondent's practice monitor. Respondent shall meet in a face-to-face setting with the monitor on a quarterly basis during the probationary period to review and discuss the Board's administrative rules and issues relative to appropriate assessment and diagnostic methods, ethical issues related to assessment and diagnosis, and any other relevant ethical issues which arise in Respondent's practice. The practice monitor shall submit quarterly reports to the Board which include the following:

- i. The time period covered by the report.
 - ii. The dates of meetings held with Respondent and a brief summary of the discussion held at each of these meetings.
 - iii. The practice monitor's recommendations for further mentoring or monitoring, if any; and
 - iv. Any other information the practice monitor deems relevant for the Board's review.
- c. Respondent shall obey all federal, state, and local statutes and regulations governing the practice of mental health counseling.
- d. Respondent shall make a personal appearance before the Board upon request. Respondent shall be given reasonable notice of the date, time, and place for appearance.
- e. The period of probation shall terminate following the one year time period provided that Respondent has fully complied with the terms and conditions for probation set forth in this Settlement Agreement and Final Order.
13. Respondent will assume responsibility for all expenses incurred in order to comply with the conditions and requirements imposed by this Settlement Agreement and Final Order.

AGREED AND ACCEPTED:


CARLA HUGHES
RESPONDENT

2-5-2013
DATE

This Settlement Agreement and Final Order is approved by the Board on
February 7, 2013.



Iowa Board of Behavioral Science
Board Chairperson

Copies to:

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